

2:00PM LINE 5

24-CIV-03759

MEGHNA PATEL, ET AL VS. SHAWN WELLS, ET AL

MEGHNA PATEL
SHAWN WELLS

CATHERINE S. ROBERTSON
JAMES K. ROBERTS

Plaintiffs' Motion for Reconsideration of Oder After Hearing Issued May 8, 2026

TENTATIVE RULING:

Plaintiffs Meghna Patel's and Christopher Pencavel's Motion for Reconsideration is **DENIED**.

Plaintiffs seek reconsideration of the court's May 8, 2026 Order Granting plaintiffs' Motion for Attorneys' Fees (Fees Order) against defendant Hudson Insurance Company (Hudson) pursuant to Code of Civil Procedure section 1008, subdivision (a).

Although Plaintiffs also requested fees against defendant Western Surety Company (Western) in the same Motion, the Fees Order requested further briefing from plaintiffs and Western as to attorneys' fees against Western. No order has been issued by the court regarding fees against Western at this time. As such, this ruling on the Motion for Reconsideration is limited to the Fees Order against Hudson and does not pertain to Western.

Plaintiffs request that the Fees Order be amended to preserve plaintiffs' rights to seek additional attorneys' fees. Plaintiffs previously filed a request for default judgment against Wells, which the court granted including attorneys' fees. Wells then filed a Motion to Set Aside the Judgment. Plaintiffs then filed an attorneys' fees motion against Hudson and Western arguing that they were jointly and severally liable for the attorneys' fees against Wells, and thus the court issued the Fees Order on May 8, 2026 granting fees against Hudson. Plaintiffs argue that when the court entered a modified default judgment against Wells on May 5, 2026, this constituted a change in circumstances that allows Plaintiffs to seek attorneys' fees for the Motion to Set Aside Judgment and for their attorneys' fees motion (fees on fees). Plaintiffs ask the court to remove the language in the Fees Order that "[o]nce plaintiffs took a default against Wells, he could no longer incur fees and costs" because it was rendered inaccurate when the court entered the modified judgment against Wells after a contested motion. Plaintiffs further claim that the language in the Fees Order that "the court will not award plaintiffs more in-attorneys' fees and costs against the sureties under Code of Civil Procedure, section 1029.8, than plaintiffs have been awarded against Wells in the default judgment" was also rendered invalid by the modified judgment.

A motion for reconsideration is based on new or different facts, circumstances or law. (Code Civ. Proc., § 1008, subd. (a).) Plaintiffs fail to show new or different circumstances to warrant reconsideration of the Fees Order. The court entered the modified judgment on May 5, 2026, prior to issuing the Fees Order. In fact, the Fees Order acknowledges the modified

judgment stating: “Plaintiffs are therefore prevailing parties as to Hudson and Hudson is jointly and severally liable with Wells for the \$34,102.50 in attorneys' fees and \$2,673.99 in costs awarded against Wells ***in the modified default judgment, filed on May 5, 2026.***” (Fees Order, at p. 7:19-22, emphasis added.) As such, the modified judgment was not a new or different circumstance since the court was aware of it. Plaintiffs instead appear to be arguing that the Fees Order is erroneous to the extent that the court limited the fees, but this is not a new or different circumstance that warrants reconsideration under Section 1008, subdivision (a).

Plaintiffs’ argument that they should be allowed to seek attorneys’ fees for the Motion to Set Aside Judgment and fees on fees also does not constitute a change in circumstances. As Hudson correctly points out, plaintiffs’ Fees Motion requested fees on fees in the Fees Motion. Therefore, this issue was already before the court when it ruled on the Fees Motion.

Notwithstanding the foregoing, and on its own motion (see *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1108, as modified (June 10, 2005)), the court has reconsidered and is striking from its May 8, 2026 Fees Order the phrase “[o]nce plaintiffs took a default against Wells, he could no longer incur fees and costs,” which was rendered inaccurate following the litigation of Wells’s motion to vacate the default judgment. The court is not otherwise modifying the Fees Order.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff’s counsel shall prepare a written order consistent with the court’s ruling for the court’s signature, providing written notice of the ruling to all parties who have appeared in this action, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), which states in part that the “prevailing party on a tentative ruling is required to prepare a proposed order ***repeating verbatim the tentative ruling***” (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the court.

2:00PM LINE 6

24-CLJ-00707

WELLS FARGO BANK, N.A. VS. DAVID GONZALEZ

WELLS FARGO BANK, N.A.
DAVID GONZALEZ

HARLAN M. REESE
CODY R. LEJEUNE

Plaintiff's Motion for Judgment on the Pleadings

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s unopposed Motion for Judgment on the Pleadings is **GRANTED** pursuant to Code of Civil Procedure, section 438, subdivision (c)(1)(A).

As a preliminary matter, plaintiff has provided an incorrect address for the hearing. Department 28 is not located in Redwood City as the notice states, but instead at the Central Courthouse, Courtroom I, 800 North Humboldt St., San Mateo, CA 94401. (See Cal. Rules of Court, Rule 3.1110 [the Notice "must specify" the location of the hearing].)

Plaintiff's Request for Judicial Notice is **GRANTED**. (Evid. Code, § 452 subd. (d).)

A motion for judgment on the pleadings is to be granted under essentially the same standard as that applied in the case of a general demurrer; that is, whether under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (*Shea Homes Ltd. Partnership v. County of Alameda* (2003) 110 Cal.App.4th 1246, 1254.) The court is generally confined to the facts alleged in the challenged pleading, and facts which are subject to judicial notice, and extrinsic evidence is not to be considered. (*Gerawan Farming, Inc. v. Lyons* (2000) 24 Cal.4th 468, 515-516; *Sykora v. State Dep't of State Hosps.* (2014) 225 Cal.App.4th 1530, 1534.) Where a defendant's answer raises any material issue or sets up any affirmative matter constituting a defense, a motion for judgment on the pleadings should be denied. (*Allstate Ins. Co. v Kim W.* (1984) 160 Cal.App.3d 326, 330-331.)

Here, plaintiff's judicial council form complaint alleges each element of causes of action for breach of contract and common counts relating to defendant David Gonzalez's credit card agreement. The genuineness of any documents and the truth of any matters specified in plaintiff's requests for admission, set one, were deemed admitted pursuant to the court's April 8, 2026 order re plaintiff's motion to deem facts admitted. (RJN, exh. C.) Those requests for admissions included admissions that: (1) defendant had an account with plaintiff ending in 6259; (2) the monthly account statements were sent to defendant requesting minimum payments; (3) defendant never notified plaintiff of a dispute; (4) as of February 8, 2024 there was a balance owing of at least \$5,083.40 on the account; (5) defendant has not paid any amount on the account since that date; (6) defendant owes at least \$5,083.40 on the account; (7) the consumer credit card customer agreement and disclosure statement applicable to the account contains a provision entitled plaintiff to attorney's fees; (8) defendant does not have